

BASIC LEGAL AND JUDICIAL ETHICS (BLJE)

Comprehensive Guide to Canons, Statutory Mandates, and Plain-Language Definitions

Featuring the 2025 Code of Judicial Conduct and Accountability (A.M. No. 25-04-04-SC), CPRA, CCCP, and Historical CPR & NCJC Evolution

PART I: LEGAL ETHICS — CODE OF PROFESSIONAL RESPONSIBILITY AND ACCOUNTABILITY (CPRA)

Promulgated under A.M. No. 22-04-05-SC / A.M. No. 22-09-01-SC (Effective May 29, 2023), governing the conduct, ethical responsibilities, and disciplinary accountability of all members of the Philippine Bar.

Canon I: Independence

Core Legal Mandate: A lawyer shall maintain professional independence at all times, free from improper outside influence, political pressure, client control over legal discretion, or commercial interests.

Practical Meaning: *"Stand your ground. Never let money, politics, personal friendships, or outside pressure dictate your legal advice or compromise your duty as an officer of the court."*

Canon II: Propriety

Core Legal Mandate: A lawyer shall act with decency, dignity, honor, and professional respect in all personal, public, commercial, and online interactions. A lawyer shall not engage in unlawful, dishonest, deceitful, or scandalous conduct.

Practical Meaning: *"Act with honor and class everywhere. A lawyer represents the legal profession 24/7—in court, in public gatherings, in commercial transactions, and on social media platforms."*

Canon III: Fidelity

Core Legal Mandate: A lawyer shall observe absolute loyalty, undivided fidelity, sacred confidentiality of privileged client communications, and strict accounting of all client property and trust funds.

Practical Meaning: *"Be completely loyal to your client. Guard client secrets permanently even after representation ends, avoid all conflicts of interest, and account for every centavo of client funds with utmost transparency."*

Canon IV: Competence and Diligence

Core Legal Mandate: A lawyer shall provide proficient, timely, thoroughly prepared, and skilled legal representation, continuously mastering legal developments and never neglecting legal matters entrusted by a client.

Practical Meaning: *"Do your job well, proficiently, and on time. Master the law and jurisprudence, avoid unmeritorious delays, prepare thoroughly for every hearing, and never abandon a client's cause."*

Canon V: Equality

Core Legal Mandate: A lawyer shall adhere to non-discrimination principles and actively promote equal access to justice regardless of race, gender, religion, sexual orientation, disability, social status, or economic means.

Practical Meaning: *"Treat everyone fairly and with equal dignity. Do not discriminate against clients or court users, and actively serve poor, disadvantaged, and marginalized litigants through pro bono legal assistance."*

Canon VI: Accountability

Core Legal Mandate: A lawyer is an officer of the court subject to moral responsibility and strict disciplinary procedures for any violation of the lawyer's oath, the CPRA, and orders of lawful authorities.

Practical Meaning: *"Own your actions. Lawyers who commit fraud, gross misconduct, ethical violations, or contemptuous acts will face disciplinary investigation, suspension, disbarment, or fines before the Supreme Court."*

PART II: JUDICIAL ETHICS — 2025 CODE OF JUDICIAL CONDUCT AND ACCOUNTABILITY (CJCA)

Promulgated under Supreme Court En Banc Resolution A.M. No. 25-04-04-SC (November 11, 2025; Effective December 21, 2025). This modern Code supersedes the 2004 New Code of Judicial Conduct (A.M. No. 03-05-01-SC) and establishes 7 comprehensive Canons integrating digital governance, AI ethics, and enhanced accountability.

Canon I: Independence (Sections 1–9)

Core Legal Mandate: Judicial independence is the performance of duties free from any undue or unwarranted influence. A judge shall uphold merit-based adjudication, reject external pressure, safeguard institutional independence from co-equal branches and local governments, and reject influence from former or incumbent colleagues.

Practical Meaning: *"Decide solely on the law and evidence without fear or favor. Judges must remain impervious to political influence, executive pressure, public clamor, or personal relationships."*

Canon II: Fidelity (Sections 1–7)

Core Legal Mandate: Fidelity is a judge's fealty to their role in the administration of justice and to the institution itself. A judge shall uphold the Constitution and the law, observe Supreme Court circulars, actively encourage amicable settlements, exercise efficient administrative supervision, and maintain judicial professionalism.

Practical Meaning: *"Be faithful to your constitutional mission and institution. Serve the administration of justice loyally, manage court personnel effectively, and ensure that every proceeding reflects the highest institutional integrity."*

Canon III: Impartiality (Sections 1–13)

Core Legal Mandate: Impartiality is essential to the proper discharge of judicial office. A judge shall perform duties without bias, avoid ex parte communications, and observe strict rules on mandatory inhibition (8 enumerated grounds under Sec. 11) and voluntary inhibition (3 criteria under Sec. 12).

Practical Meaning: *"Act as an impeccably neutral referee. Never take sides, never communicate secretly with one party, and step aside through inhibition whenever personal bias, financial interest, or family ties could reasonably cloud judicial neutrality."*

Canon IV: Propriety (Sections 1–29)

Core Legal Mandate: Propriety encompasses a judge's conduct, behavior, and attitude across all platforms. A judge shall live modestly, maintain judicial temperament, observe proper courtroom decorum and black robe wearing, manage family/financial interests, and strictly comply with the Rules on the Use of Social Media (Sec. 22–29) avoiding sub judice violations and online misconduct.

Practical Meaning: *"Live and conduct yourself beyond reproach everywhere. Avoid ostentatious displays of wealth, maintain calm judicial temperament, and use social media with utmost caution without commenting on pending cases or compromising judicial dignity."*

Canon V: Equality (Sections 1–5)

Core Legal Mandate: Equality before the courts guarantees fair and equal treatment in all adjudicative and administrative matters without discrimination. A judge shall avoid stereotyping and provide permissible differential treatment and reasonable accommodations for vulnerable persons (Sec. 4–5).

Practical Meaning: *"Ensure equal justice and human dignity for all. Protect vulnerable sectors—including women, children, persons with disabilities, the elderly, indigent litigants, and minorities—with accessible courtroom accommodations."*

Canon VI: Competence and Diligence (Sections 1–9)

Core Legal Mandate: Competence and diligence require continuous mastery of law and jurisprudence, prompt disposition of cases, personal decision-writing, efficient court management, and the ethical use of technology and Artificial Intelligence (Sec. 5–6), where AI is permitted only as a research aid and never as a substitute for judicial discernment.

Practical Meaning: *"Master the law, decide promptly, and write your own rulings. Use modern digital tools and AI responsibly for legal research while maintaining human wisdom, personal decision-making, and total dedication to timely justice."*

Canon VII: Accountability (Sections 1–34)

Core Legal Mandate: Judges are strictly accountable for their conduct under the disciplinary authority of the Supreme Court and Judicial Integrity Office (JIO). Offenses are tiered into Serious, Less Serious, and Light with definitive penalties, Modifying Circumstances, immediately executory orders, and strict 5-year criteria for judicial clemency petitions.

Practical Meaning: *"Accountability is non-negotiable. Ethical breaches will be investigated swiftly by the JIO, resulting in suspension, heavy fines, or dismissal from service, reinforcing that judicial office is a sacred public trust."*

PART III: COURT PERSONNEL ETHICS — CODE OF CONDUCT FOR COURT PERSONNEL (CCCP)

Promulgated under A.M. No. 03-06-13-SC, establishing ethical standards and public accountability for all Clerks of Court, Branch Clerks, Legal Researchers, Process Servers, Court Stenographers, and administrative staff.

Canon I: Fidelity to Duty

Core Legal Mandate: Court personnel shall dedicate themselves to the honest, faithful, and diligent performance of their public duties, placing public interest above personal convenience or private financial gain.

Practical Meaning: *"Serve the court and the public honestly. Never solicit or accept tips, facilitation fees, or gifts from litigants, and never act as middlemen or fixers for private practitioners."*

Canon II: Confidentiality

Core Legal Mandate: Court personnel shall maintain strict confidentiality concerning all official information, draft decisions, internal memoranda, case raffle results, and judicial deliberations acquired during their service.

Practical Meaning: *"Keep court records and secrets locked. Never leak draft orders, unsigned decisions, or confidential case documents to litigants, journalists, or third parties before official promulgation."*

Canon III: Conflict of Interest

Core Legal Mandate: Court personnel shall not participate in any business transactions, private employment, or financial investments that conflict with or compromise their official duties and court responsibilities.

Practical Meaning: *"No shady side deals or commercial conflicts. Do not recommend private law practitioners to litigants, and do not enter into commercial dealings with individuals who have pending matters before the court."*

Canon IV: Performance of Duties

Core Legal Mandate: Court personnel shall perform their official duties promptly, courteously, efficiently, without discrimination, and in strict compliance with prescribed procedural guidelines and work schedules.

Practical Meaning: *"Be prompt, hardworking, and polite. Arrive at work on time, assist the public professionally without red tape, and execute court processes and notices diligently."*

PART IV: HISTORICAL EVOLUTION & COMPARATIVE ANALYSIS

A comparative roadmap tracing the statutory evolution of Philippine Legal and Judicial Ethics from the foundational 1988 CPR and 2004 NCJC to the modern 2023 CPRA and 2025 CJC frameworks.

ERA & CODE	SUBJECT / BENCH	CANONS STRUCTURE & KEY INNOVATIONS
1988 CPR (Code of Professional	Lawyers	Canons 1–22 grouped into 4 Chapters: - Ch. I: Society (Canons 1–6) - Ch. II: Legal Profession (Canons 7–9)

Responsibility)		• Ch. III: Courts (Canons 10–13) • Ch. IV: Clients (Canons 14–22) Fourfold duty framework; superseded by 2023 CPRA.
2004 NCJC (New Code of Judicial Conduct - A.M. No. 03-05-01-SC)	Judges & Justices	6 Canons based on the Bangalore Principles: • Canon 1: Independence Canon 2: Integrity • Canon 3: Impartiality Canon 4: Propriety • Canon 5: Equality Canon 6: Competence & Diligence Superseded on Dec 21, 2025 by the 2025 CJCA.
2023 CPRA (Code of Professional Responsibility & Accountability - A.M. No. 22-04-05-SC)	Lawyers	6 Core Value-Based Canons: • Canon I: Independence Canon II: Propriety • Canon III: Fidelity Canon IV: Competence & Diligence • Canon V: Equality Canon VI: Accountability Introduces digital/social media rules, CPRA disciplinary tiers, and gender sensitivity.
2025 CJCA (Code of Judicial Conduct & Accountability - A.M. No. 25- 04-04-SC)	Judges & Justices	7 Core Value-Based Canons: • Canon I: Independence Canon II: Fidelity (NEW!) • Canon III: Impartiality Canon IV: Propriety (Social Media) • Canon V: Equality Canon VI: Competence & Diligence (AI) • Canon VII: Accountability (JIO Formal Process & Clemency) Modernizes judicial ethics under the SPJI 2022-2027 framework.